

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 21-10

ORANGE AVENUE EXPRESS, INC.
Complainant,

v.

HAPAG LLOYD AG
Respondent.

JOINT STATUS REPORT

As required by the scheduling order dated February 18, 2022, Complainant Orange Avenue Express, Inc. (“OAE”) and Respondent Hapag-Lloyd, AG (Hapag) submit their joint status report:

Counsel for the parties met and conferred via email for the purposes of completing this joint status report.

A. **Protective Order:** The order entering the stipulated confidentiality agreement and protective order was served on March 15, 2022.

B. **Status of Discovery.** All initial discovery was propounded on March 11, 2022 as required by the Scheduling Order. Per Hapag’s unopposed motion, the deadline to provide responses to the initial set of discovery was continued to April 20, 2022.

1. **Interrogatories and Requests for admissions.** OAE served interrogatories and requests for admissions, Hapag served interrogatories. Each party’s responses to interrogatories and requests for admissions was served on April 20, 2022.

2. **Request for Documents.** Both parties served requests for production of documents. OAE served written responses and responsive documents on April 20, 2022. Hapag provided an initial production of documents on April 20, 2022 and further documents on April 25, 2022 and on May 9, 2022. As of the date of this submission Hapag has not served its written response to the OAE's request for production of documents nor has Hapag fully completed its production. OAE has requested that Hapag complete its responses (documents and written responses) no later than May 13, 2022 to avoid motion practice thereon.

C. **Proposed Briefing Schedule:** Discovery is scheduled to be completed on August 31, 2022. The initial decision is to be served no later than December 8, 2022. As such the parties proposed the following briefing schedule.

1. September 16, 2022: Deadline to meet and confer and complete any joint stipulation of facts.
2. October 7, 2022: Complainants brief, proposed finding of facts, and appendix due.
3. October 28, 2022: Respondent's brief, proposed finding of facts, appendix and response due.
4. November 8, 2022: Complainants reply due.

D. Proposed Hearing:

The scheduling order denied the parties initial request for hearing and ordered the parties to address why an in person hearing is necessary. In lieu of a proposal or decision at this time; the parties suggest that they be allowed to submit a proposal, joint or otherwise, for any hearing no later than September 16, 2022 so that the parties have an opportunity to review all discovery and meet and confer regarding joint facts before any further formal request for a hearing.

E. Settlement: The parties are amenable to settlement in principal but have not had substantive settlement discussions since the last joint status report. The parties intend to engage in more substantive discussion as soon as practical.

Date: May 12, 2022

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on May 12, 2022, the foregoing Joint Status Report has been served upon all interested persons and parties by electronic means pursuant to the below list.

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Erin M. Wirth, Chief Administrative Law Judge

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